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Case Number: 22CHCV01013 Hearing Date: September 3, 2026 Dept: F47

Dept. F47

Date: 9/3/26

TRIAL DATE: 2/1/27

Case #22CHCV01013

MOTION FOR

MONETARY, ISSUE, EVIDENCE

AND/OR

TERMINATING SANCTIONS

Motion filed on 4/30/26.

MOVING PARTY: Defendant Roman Catholic Archdiocese of Los Angeles

RESPONDING PARTY: Plaintiff Yvonne Cruz

NOTICE: ok

RELIEF REQUESTED: An order imposing the following sanctions:

(1)

Terminating sanctions against Plaintiff Yvonne

Cruz ("Plaintiff") for egregious discovery abuse. CCP 2023.030(d);

(2)

At most, \$8,300 in monetary sanctions against Plaintiff and the Law Offices of Robin Paley for expenses incurred due to their discovery abuse (\$2,490.00 in bringing this Motion, and \$5,810.00 in having to re-depose Plaintiff and her husband).

CCP

2023.030(a);

(3)

\$1,000.00 in monetary sanctions against Plaintiff and the Law Offices of Robin Paley for failing to respond in good faith to a proper request for production under CCP 2031.010, et seq. CCP 2023.050(a)(1). Defendant also requests the Court order counsel to report these sanctions to the State Bar. CCP 2023.050(c).

(4)

Alternatively, if the Court is not inclined to issue a terminating sanction, an evidentiary sanction disallowing Plaintiff from using the Subject Tree Root as evidence, including in photographs and videos produced throughout discovery and as part of the Anna Delgado Photo Essay.

(5)

Alternatively, if the Court is not inclined to issue a terminating sanction, then Defendant requests a jury instruction regarding Plaintiff's spoliation of evidence under CACI 204 and serious discovery abuse. Evidence Code 413.

RULING: The motion is granted, in part, and denied, in part, as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an alleged trip and fall incident that occurred on 10/30/20 at San Fernando Mission Cemetery (the Cemetery) which is owned by Defendant The Roman Catholic Archdiocese (Defendant). (See Complaint). Plaintiff Yvonne Cruz (Plaintiff) contends that on 10/30/20 she was visiting several of her family members' graves at the

cemetery when she stepped backward and caught her heel on tree roots which caused her to lose her balance, fall and sustain injuries. Id.

On 10/28/22, Plaintiff filed this action against Defendant alleging causes of action for general negligence and premises liability. On 11/7/22, Defendant answered the complaint.

On 9/25/24, Defendant filed and served its motion for summary judgment which was denied by the Court on 12/12/24. (See 12/12/24 Minute Order).

At the 11/12/24 deposition of Defendant's person most knowledgeable regarding cemetery maintenance, when trial was scheduled for 1/13/25, Plaintiff presented a video of the tree root over which Plaintiff allegedly tripped and multiple photographs that had not been previously produced in discovery. (Shahin Decl., Ex.A pp. 81:7-82:12, 97:14-98:5, 100:9-21, 102:6-103:4, 105:8-106:1, 108:22-109:1 and Ex.10-16 thereto). At the deposition, Plaintiff's counsel promised to produce the documents to Defendant, but delayed in doing so. (Id. pp. 82:6-12, 102:6-103:4).

On 12/6/24, Plaintiff produced 24 photographs and 6 videos taken by an investigator named Anna Delgado during a visit to the Cemetery on 11/14/20. (Shahin Decl. ¶6). This production also included what was labeled as a "photo essay" taken by Delgado. (Shahin Decl., Ex.B). This production occurred after Defendant had propounded three requests for such information, to which Plaintiff had represented she produced all responsive documents. (Shahin Decl. ¶7; Ex.C Defendant's Requests for the Production of Documents (RPDs) to Plaintiff, Set 1, Nos. 2, 5, 11-12, and 15; Ex. D Plaintiff's verified Responses to RPDs, Set 1, Nos. 2, 4, 11, 12, 15, Ex. 1, 2 attached thereto; Ex.E Second Amended Notice of Deposition of Yvonne Cruz, pp. 2-4; Ex.F Transcript of the Deposition of Yvonne Cruz, dated 3/19/24 11:1-7, 12:1-15, 12:25-13:2; Ex.G Supp. RPD to Plaintiff; Ex.H Plaintiff's verified Response to Supp. RPD, Nos. 2, 11-12). The documents from the Delgado Photo Essay, including piecemeal documents which were produced in April 2023 and December 2024, contain not only photographs taken by Delgado, but also her measurements, conclusions, observations, and recordings of statements from Plaintiff. (Shahin Decl., Ex.B).

On 1/22/25, Defendant issued a subpoena to Delgado for

all materials relied on in the completion of her “Photo Essay.” (Shahin Decl., Ex.J). On 2/18/25, Plaintiff served written objections to the subpoena asserting attorney-client privilege and work product privilege, but Plaintiff did not move to quash the subpoena or move for a protective order. (Shahin Decl. ¶10).

On 2/27/25, Defendant deposed Plaintiff’s husband, Ernesto Cruz, who was depicted in the Photo Essay and who was previously represented to be the photographer of several of the photos produced in discovery. (Shahin Decl. ¶11; Ex.F 29:24-30:19). Defendant used the photos produced by Plaintiff containing Delgado’s notes, mental impressions, observations, and statements from Plaintiff at Mr. Cruz’s deposition without objection from Plaintiff. Id.

On 3/20/25, in response to the deposition subpoena, Delgado’s investigative file was produced to Defendant. (Shahin Decl. ¶13). In addition to the Photo Essay, the file included a 2-page document which purports to be Delgado’s notes (the Notes) following her November 2020 inspection at the cemetery. (Shahin Decl., Ex.M). The Notes include material facts not previously disclosed in discovery. Id.

During meet and confer efforts regarding the previously undisclosed facts, Plaintiff’s counsel asserted attorney-client and work product privileges. On 4/7/24, Plaintiff’s counsel used parts of the Photo Essay during the deposition of defense witness, Dai Luu. (Shahin Decl. ¶¶15-17).

Defendant contends that the contents of the Notes contradict Plaintiff’s discovery responses and Plaintiff’s and her husband’s deposition testimony regarding Plaintiff’s possession of the tree root. (See Shahin Decl. , Ex.M, pp.1-2; Ex.L; Ex.C RPDs, Nos. 2, 4, 11-12, 15; Ex.E; Amended Notice of Depo of Plaintiff, pp.2-4; Ex.G Supp. RPD to Plaintiff; Ex.D Plaintiff’s Responses to RPDs Nos. 2, 4, 11, 12, 15; Ex.F Plaintiff’s Depo 11:1-7, 12:1-15, 12:25-13:2; Ex.H Plaintiff’s Response to Supp. RFD Nos. 2, 11-12; Ex.J; Ex.K E. Cruz Depo 7:24-9:23, 15:24-17:5, 17:9-18:24, 24:1-22).

As a result, on 4/22/25, Defendant previously filed and served a prior motion seeking an order various sanctions regarding Plaintiff’s conduct with regard to the tree root. On

7/24/25, the Court granted the motion, in part, and denied the motion, in part. (See 7/24/25 Minute Order, pp.21-25). The Court denied the request for terminating

sanctions, imposed monetary sanctions on Plaintiff and her counsel, and denied, without prejudice, the request for the issuance of a jury instruction regarding discovery abuse. Id.

Thereafter, Defendant noticed the and took the deposition of Delgado and second depositions of Plaintiff and her husband, Ernesto Cruz. At deposition, Delgado testified that Plaintiff and/or her husband were in possession of the tree root over which Plaintiff claims she tripped. (Shahin Decl., Ex.O 24:12-21, 25:10-18, 26:12-14, 27:17-28:8, 31:4-32:17, 33:24-25 and Ex.1 thereto). Despite the foregoing, at the second sessions of Plaintiff's and her husband's depositions, they testified that they do not recall the circumstances surrounding the possession of the tree root; they no longer have possession of same and do not know where it is. (Shahin Decl., Ex.P 9:2-5, 11:20-12:4,13:19-14:17, 16:11-24, 17:1-18:17 and Ex.1 thereto; Ex.Q 6:14-8:2, 10:4-16, 11:2-11 and Ex.1 thereto). Mr. Cruz's testimony at his second deposition contradicts his prior testimony. (Supp. Shahin Decl., Ex.R 15:6-16, 15:24-16:21, 17:6-18:24, 23:22-25:7; Shahin Decl., Ex.Q 13:21-23, 14:13-15, 16:3-8, 16:17-21)

On 4/30/26, Defendant filed and served the instant motion seeking an order imposing the following sanctions:

(1) Terminating sanctions against Plaintiff Yvonne Cruz ("Plaintiff") for egregious discovery abuse. CCP 2023.030(d);

(2) At most, \$8,300 in monetary sanctions against Plaintiff and the Law Offices of Robin Paley for expenses incurred due to their discovery abuse (\$2,490.00 in bringing this Motion, and \$5,810.00 in having to re-depose Plaintiff and her husband).

CCP 2023.030(a);

(3) \$1,000.00 in monetary sanctions against Plaintiff and the Law Offices of Robin Paley for

failing to respond in good faith to a proper request for production under CCP 2031.010, et seq. CCP 2023.050(a)(1). Defendant also requests the Court order counsel to report these sanctions to the State Bar. CCP 2023.050(c).

(4) Alternatively,
if the Court is not inclined to issue a terminating sanction, an evidentiary sanction disallowing Plaintiff from using the Subject Tree Root as evidence, including in photographs and videos produced throughout discovery and as part of the Anna Delgado Photo Essay.

(5) Alternatively,
if the Court is not inclined to issue a terminating sanction, then Defendant requests a jury instruction regarding Plaintiff's spoliation of evidence under CACI 204 and serious discovery abuse. Evidence Code 413.

Plaintiff has opposed the motion and Defendant has filed a reply to the opposition.

ANALYSIS

Plaintiff's objection to new evidence in the reply regarding alleged discovery violations by Plaintiff that occurred after the motion was filed is sustained.

Contrary to the assertion in the opposition, the instant motion does not seek the same relief as Defendant's motion filed on 4/22/25 and ruled on by the Court on 7/24/25. Since the prior motion was filed and ruled upon, the depositions of Delgado and the second depositions of Plaintiff and her husband revealed the whereabouts of the tree root over which Plaintiff allegedly tripped and which is depicted in the photographs is unknown.

The duty to preserve evidence arises when litigation is "reasonably foreseeable," meaning it is probable, likely, and more than a mere possibility. *Victor Valley Union High School District v (2023) 91 CA5th 1121, 1149*. Spoliation of evidence occurs when evidence is destructed, significantly altered, or failed to be preserved for another's use in pending or future litigation. *Williams (2008) 167 CA4th 1215, 1223*. Such conduct can destroy fairness and justice and it increases the risk of an erroneous decision on the merits of the underlying cause of action. *Id.*

Destroying evidence can also increase the costs of litigation as parties attempt to reconstruct the destroyed evidence or to develop other evidence, which may be less accessible, less persuasive, or both. *Id.* There is no tort cause of action for the intentional destruction of evidence after litigation has commenced; however, such conduct constitutes a misuse of the discovery process that may be subject to monetary, issue, evidentiary, and/or terminating sanctions. *Id.*

Spoliation of evidence constitutes a “serious form of discovery abuse.” *Victor Valley*, *supra* at 1139. Destroying evidence in response to a discovery request after litigation has commenced as well as destruction of evidence in anticipation of such a request are both misuses of discovery. *Cedars-Sinai Medical Center* (1998) 18 C4th 1, 12.

The evidence establishes that Plaintiff saved the tree root as “evidence” showing that Plaintiff knew it was material to this litigation/anticipated litigation. (Ex.O Delgado Depo 14:1-24, 26:12-13, 27:17-28:8, 30:11-31:6). Despite the foregoing, Plaintiff and her husband claim that they do not recall having possession of the tree root and do not know its whereabouts. (Ex.P Plaintiff’s Depo Vol. II 7:2-4, 9:2-5, 11:20-12:4, 13:19-21, 14:4-16:13; Ex.Q E. Cruz Depo Vol.II 6:14-8:2, 11:2-12:10). The Court finds that the foregoing establishes that after Plaintiff contemplated litigation; Plaintiff knew that the tree root constituted evidence; and Plaintiff failed to preserve the tree root, over which she had control, as evidence.

The loss of such evidence deprived Defendant of the opportunity to conduct its own investigation regarding the root which Plaintiff used to reconstruct the accident scene in photographs (e.g., determine whether the root actually came from the tree Plaintiff identified; its length; whether the photographs fairly represent the root, etc.).

A trial court has broad discretion in imposing discovery sanctions and its order will not be disturbed on appeal absent a showing of a manifest abuse of discretion that exceeds the bounds of reason. See *Pratt* (2008) 168 CA4th 165, 183. The penalty should be appropriate to the misconduct and should not exceed that which would protect the interests of the party denied the discovery. See *Deyo* (1978) 84 CA3d 771, 793.

The Court finds that a spoliation jury instruction with regard to the tree root will sufficiently protect Defendant's interests in this matter. Evidence Code 413 provides that "[i]n determining what inferences to draw from the evidence or facts in the case against a party, the trier of fact may consider, among other things, the party's failure to explain or to deny by his testimony such evidence or facts in the case against him, or his willful suppression of evidence relating thereto, if such be the case." Further CACI 204 provides: "You may consider whether one party intentionally concealed or destroyed evidence. If you decide that a party did so, you may decide that the evidence would have been unfavorable to that party." As, such Defendant's request for terminating sanctions and evidence sanctions is denied.

The Court further finds that Defendant is entitled to an award of monetary sanctions in the amount of \$2,490.00 against Plaintiff and her counsel, the Law Offices of Robin Paley, with regard to the fees and costs incurred in relation to filing the instant motion. (See Shahin Decl. ¶22; Supp. Shahin Decl.); CCP 2023.030(a).

In the reply, Defendant withdraws its request for an award of an additional \$5,810.00 in deposition related expenses. (See Reply, p.10:6-8). The Court finds that Defendant's requests for an additional \$1,000.00 in as well as an order to report such sanctions to the State Bar pursuant to CCP 2023.050(b) are not warranted.

CONCLUSION

The request for terminating sanctions is denied.

The request for an evidentiary sanction is denied.

The request for a spoliation jury instruction pursuant to Evidence Code 413 and CACI 204 is granted in relation to the tree root.

Monetary sanctions in the amount of \$2,490.00 are imposed against Plaintiff Yvonne Cruz and her counsel, the Law Offices of Robin Paley, and in favor of Defendant Roman Catholic Archdiocese of Los Angeles pursuant to CCP 2023.030(a) for the expenses related to the instant motion. Sanctions are payable within 30 days.

The request for additional deposition-related monetary sanctions in the amount of \$5,810.00 is denied.

The request for additional monetary sanctions in the amount of \$1,000.00 against Plaintiff Yvonne Cruz and her counsel, the Law Offices of Robin Paley, and in favor of Defendant Roman Catholic Archdiocese of Los Angeles pursuant to CCP 2023.050(a)(1) and the corresponding request to report such sanctions to the State Bar pursuant to CCP 2023.050(b) are denied.